

An Act

ENROLLED HOUSE
BILL NO. 3462

By: Hays of the House

and

Bullard of the Senate

An Act relating to professions and occupations; amending 59 O.S. 2021, Sections 1003, 1005, 1006, and 1009, which relate to The Plumbing License Law of 1955; modifying definitions; decreasing certain prohibited examination period; establishing certain passing score; allowing Construction Industries Board to issue licenses to certain persons; requiring certain plumbing contractors to meet certain requirements; limiting certain residential plumbers to certain buildings; updating statutory language; and providing an effective date.

SUBJECT: Professions and occupations

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1003, is amended to read as follows:

Section 1003. As used in The Plumbing License Law of 1955:

1. "Board" means the Construction Industries Board;
2. "Committee" means the Oklahoma State Committee of Plumbing Examiners appointed by the Construction Industries Board;
3. "Plumbing Hearing Board" means the ~~State~~ Plumbing Hearing Board which shall consist of a designee of the Construction Industries Board, as chair, and the members of the Oklahoma State Committee of Plumbing Examiners;

4. "Apprentice" or "plumber's apprentice" means any person sixteen (16) years of age or older who, as the principal occupation of the person, is engaged in learning and assisting in the installation of plumbing under the direct supervision of a licensed journeyman plumber or plumbing contractor;

5. "Journeyman plumber" means any person other than a ~~master plumber~~ or plumbing contractor who engages in or works at the actual installation, alteration, repair ~~and/or~~, or renovation of plumbing site;

6. "Temporary journeyman plumber" means any person other than a person permanently licensed as a journeyman plumber, ~~master plumber~~, or plumbing contractor in this state who meets the temporary licensure requirements of Section 1006.1 of this title;

7. ~~"Master plumber" is a term used and defined under laws which have been repealed. A person formerly known as a master plumber is henceforth to be known as a "plumbing contractor" as defined in this section;~~

~~8.~~ "Plumbing contractor" means any person who is skilled in the planning, superintending, and practical installation of plumbing and who is familiar with the laws and rules governing the same. This definition may be construed to mean any person who has qualified and is licensed under The Plumbing License Law of 1955 as a plumbing contractor, who may operate as an individual, ~~a~~ firm, partnership, limited liability company, or corporation, or other legal entity to engage in the business of plumbing, or the business of contracting to do plumbing, or furnish labor or materials or both for the installation, repair, maintenance, or renovation of plumbing according to the requirements of The Plumbing License Law of 1955;

~~9.~~ 8. "Plumbing" means, and includes:

- a. all piping, fixtures, appurtenances, and appliances for, and in connection with, a supply of water within or adjacent to any building, structure, or conveyance, on the premises and to the connection with a water main or other source of supply,
- b. all piping, fixtures, appurtenances, and appliances for sanitary drainage or storm drainage facilities, including venting systems for such facilities, within or adjacent to any building, structure, or conveyance,

on the premises and to the connection with a public disposal system or other acceptable terminal,

- c. the installation, repair, maintenance, and renovation of all piping, fixtures, appurtenances, and appliances for a supply of water, or for the disposal of waste water, liquid waste, or sewage within or adjacent to any building, structure, or conveyance, on the premises and to the source of supply of water or point of disposal of wastes, and
- d. the installation, repair, and maintenance of radiant-floor heating system piping in residential homes with capacities no greater than one hundred thousand (100,000) ~~BTU's~~ BTUs using only piping approved by the most current adopted edition of the International Mechanical Code; and

9. "Residential journeyman plumber" means any person who is qualified and licensed, other than a plumbing contractor, to engage in or work at the actual installation, alteration, repair, or renovation site of residential plumbing. Residential plumbing shall be limited to the type and category of journeyman plumbing license for supervising and performing plumbing work for detached one- or two-family dwellings and does not include commercial plumbers; and

10. "Variance and Appeals Board" means the Oklahoma State Plumbing Installation Code Variance and Appeals Board.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1005, is amended to read as follows:

Section 1005. ~~(a)~~ A. Examinations shall be uniform and shall be practical in nature but sufficiently strict to test the qualification and fitness of the applicant as a journeyman plumber or residential journeyman plumber or as a plumbing contractor, as the case may be. It shall be in whole or in part in writing.

~~(b)~~ B. Regular examinations shall be held at least twice each year and special examinations may be fixed by the Oklahoma State Committee of Plumbing Examiners. Any applicant initially failing to pass the examination shall not be permitted to take another examination for a period of thirty (30) days, and thereafter any such applicant subsequently failing to pass the examination shall

not be permitted to take a subsequent examination for a period of ~~ninety (90) days~~ thirty (30) days.

C. A passing score on all examinations shall be a grade not less than seventy percent (70%).

SECTION 3. AMENDATORY 59 O.S. 2021, Section 1006, is amended to read as follows:

Section 1006. A. The Construction Industries Board shall issue licenses to persons who have been certified by the Board as having successfully passed the examination for journeyman plumber ~~or,~~ plumbing contractor, or residential journeyman plumber, as the case may be, and who have paid the fees and have otherwise complied with the applicable requirements of The Plumbing License Law of 1955.

B. Plumbing contractors shall meet the same requirements as applicants for the journeyman plumber examination with an additional one (1) year of experience. Plumbing contractors shall notify their surety of any municipalities wherein plumbing work will be performed and may operate as an individual, firm, partnership, limited liability company, or corporation, or other legal entity to engage in the business of plumbing, or the business of contracting to do plumbing.

C. Residential plumbers shall be limited to engage in work on one- and two-family dwelling units in a singularly constructed structure that have a maximum of two dwelling units for each structure, and have a minimum of five (5) feet of separation of construction to any other dwelling unit or structure regardless and independent of firewalls, such as a single independent residential home or duplex. Residential plumbers shall not engage in work on dwelling units or structures that include occupancies of more than two dwelling units such as apartments, motels, and multifamily townhomes.

D. A residential journeyman plumber license shall entitle the licensee to install plumbing as defined in OAC 158:30-1-2. To engage in the act of residential plumbing, a residential journeyman plumber shall be employed and supervised by a licensed plumbing contractor. A residential journeyman plumber shall not contract or furnish labor and materials. If a residential journeyman plumber performs plumbing work in commercial industrial plumbing, he or she shall be employed by a licensed plumbing contractor and maintain an apprentice plumber registration, as defined in OAC 158:30-5-1.

E. Applicants for a journeyman plumber examination shall be eighteen (18) years of age or older and have:

1. Three (3) years of experience in the plumbing trade while employed by a licensed plumbing contractor; or

2. Three (3) years of experience in the plumbing trade while serving in the United States Armed Forces.

F. Applicants for a residential journeyman plumber examination shall be eighteen (18) years of age or older and have:

1. Two (2) years and four thousand (4,000) verified hours of work experience in the plumbing trade while employed by a licensed plumbing contractor;

2. An associate's degree or vocational diploma certifying completion of a formal plumbing education program approved by the Oklahoma State Committee of Plumbing Examiners consisting of a minimum of one thousand (1,000) classroom hours from an educational institution approved by the Committee and three thousand (3,000) verified hours of work experience in the plumbing trade while employed by a licensed plumbing contractor; or

3. Two (2) years of experience in the plumbing trade while serving in the United States Armed Forces and three thousand (3,000) verified hours of work experience in the plumbing trade while employed by a licensed plumbing contractor.

G. A verifiable out-of-state plumbing license may be used to expedite processing of the requirements or be considered for reciprocity pursuant to OAC 158:30-5-4 if there is a written reciprocity agreement with that state, the license is currently in good standing, and the licensee meets the requirements set forth in subsections E and F of this section.

H. All licenses shall be nontransferable. It shall be unlawful for any holder of a license under The Plumbing License Law of 1955 to loan or allow the use of such license by any other person, firm or corporation, except as specifically provided in The Plumbing License Law of 1955.

~~C.~~ I. The Board shall adopt procedures and rules to review and accept proof and documentation of an applicant's qualified training

and experience as a journeyman plumber ~~or~~, plumbing contractor, or residential journeyman plumber while on active duty with the ~~armed forces~~ Armed Forces of the United States when such service member has been honorably discharged from active duty within one (1) year of the application for examination or licensure in this state as a journeyman plumber ~~or~~, plumbing contractor, or residential journeyman plumber.

SECTION 4. AMENDATORY 59 O.S. 2021, Section 1009, is amended to read as follows:

Section 1009. A. No license shall be issued for longer than one (1) year and all licenses shall expire on the last day in the birth month of the licensee and shall be in alignment with continuing education requirements. Such licenses may be renewed upon application and payment of fees within thirty (30) days preceding or following the date the license renewal is due. No journeyman or contractor license shall be renewed unless the licensee has completed the required hours of continuing education as determined and approved by the Oklahoma State Committee of Plumbing Examiners.

B. The Committee may renew licenses upon application made more than thirty (30) days following the date of expiration only upon payment of the renewal and additional fee prescribed and upon compliance with any applicable continuing education requirements as established by the Construction Industries Board and this act ~~The Plumbing License Law of 1955.~~ Provided, that no penalty for renewal shall be charged to any holder of a license which expires while such holder is in military service if application is made within one (1) year following discharge from the military service.

C. Apprentice registration certificates expire one (1) year after date of registration, at which time the apprentice may reregister.

SECTION 5. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____